

HOUSE BILL 645

By Garrett

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 4, Part 8, relative to the Senator Ben
Atchley Opportunity Grant Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-4-803, is amended by deleting the section and substituting:

The state shall grant an amount as provided in this part to Tennessee resident students enrolled at independent, nonprofit colleges and universities accredited by the College Commission of the Southern Association of Colleges and Schools and, to the extent feasible within existing budgetary resources of the Tennessee student assistance corporation, to Tennessee resident students enrolled at eligible independent postsecondary institutions, as defined in § 49-4-902(11)(C), and private nonprofit postsecondary institutions that:

- (1) Have established a partnership with this state pursuant to a memorandum of understanding executed in 2013;
- (2) Are accredited by a regional accrediting association;
- (3) Use a competency-based model of education;
- (4) Have established and continuously maintain a physical campus or location of operation within this state;
- (5) Maintain a governing body or advisory board based in this state with oversight of operations in this state; and
- (6) Have been chartered in this state as a nonprofit entity for at least five (5) consecutive years.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.